HEADNOTE

"1. A person who knowingly participates in the joint, divided implementation of a common distribution project encompassing several nation states as sales territories is not merely responsible for the action he himself carried out on the basis of organizational assignment, but the planned contributions of the other participants realize the common project and are to be attributed to him. The internal division thus does not limit external liability. Rather, the scope of attribution is determined by the concrete cooperation on the basis of the common plan of action.
2. By reason of joint tortfeasance, each defendant (as a so-called joint debtor) is obliged in principle, in external relations, to compensate the total damage caused by all participants, whereby the claimant can only demand compensation for the damage once (so-called joint and several liability)."

COURT
Local Division in Munich

PROCEEDINGS
Infringement action

PATENT
EP 3 673 210

STEAM COOKING DEVICE

KEYWORDS
Joint tortfeasance | Infringement liability | Joint and several liability

Article 63 Permanent injunctions

SUMMARY
The Local Division in Munich ruled on an infringement action. The patent at issue relates to a steam cooking device. According to the headnotes of the decision, a person may knowingly participate in a joint distribution project across multiple nations. Such a participant bears liability for the entire common plan, not just their own assigned tasks. The internal division of tasks does not limit external liability to each participant. This means that each participant's responsibility extends to all contributions made under the common plan of action. Furthermore, by reason of joint tortfeasance, each defendant is obliged to compensate the total damage caused by all participants. As a result, the claimant can demand compensation only once, even though each defendant bears full liability for the entire damage.